

Terms & Conditions

Web Gecko — Website Design, Hosting & Digital Services

Document: WG-TNC-001
ABN 32 300 992 377
14 May 2026

IMPORTANT: Please read these Terms and Conditions carefully before using our services. By engaging Web Gecko or accessing your client portal, you agree to be bound by these terms.

1. Parties & Agreement

These Terms and Conditions ('Terms') constitute a legally binding agreement between **Web Gecko** (ABN 32 300 992 377), a digital services provider registered in Queensland, Australia ('Web Gecko', 'we', 'us', 'our') and the individual or entity engaging our services ('Client', 'you', 'your').

These Terms apply to all website design, development, hosting, social media management, and related digital services provided by Web Gecko. By engaging our services, paying a deposit, or accessing your client portal, you agree to be bound by these Terms.

These Terms are governed by the laws of Queensland, Australia, and the Australian Consumer Law (ACL) as set out in Schedule 2 of the *Competition and Consumer Act 2010* (Cth).

2. Services

Web Gecko provides the following services, subject to the specific scope agreed with each Client:

- Website design and development (custom HTML, CSS, JavaScript)
- Website hosting on Australian or international cloud infrastructure
- Monthly site maintenance and content updates
- Social media account creation, management, and content posting
- Community management including comment and DM responses
- SEO optimisation and performance improvements
- Domain registration and management assistance
- Other digital services as agreed in writing

The specific scope, deliverables, and pricing for each Client are agreed prior to commencement and confirmed via email or client portal. Web Gecko reserves the right to engage subcontractors to fulfil any part of the agreed services.

3. Payment Terms

Unless otherwise agreed in writing, the following payment terms apply:

- **Website build deposit:** A non-refundable deposit is required to commence work. The deposit amount is agreed prior to commencement and confirmed via the client portal.
- **Final payment:** Due prior to the launch of the live website. The site will not be made publicly live until final payment is received in full.
- **Monthly hosting & maintenance:** Billed monthly in advance. An introductory rate applies for the first three months, after which the standard ongoing rate applies. Current rates are displayed in the client portal.
- **Social media management:** Billed monthly in advance. The plan and pricing are confirmed at sign-up and displayed in the client portal.
- **Late payments:** Web Gecko reserves the right to suspend services (including taking the website offline) if any payment is more than 14 days overdue. Services will be restored upon payment of all outstanding amounts.

All prices are in Australian Dollars (AUD) and include GST where applicable. Payments are processed via Square or other nominated payment gateways. Web Gecko does not store card details.

4. Intellectual Property

Upon receipt of full payment for the agreed website build, the Client owns the final delivered website design and content ('Deliverables'). Web Gecko retains ownership of all underlying frameworks, templates, tools, code libraries, and proprietary methodologies used in creating the Deliverables.

Web Gecko is granted a non-exclusive, royalty-free licence to display the Client's completed website in portfolios and promotional materials unless the Client requests otherwise in writing.

The Client warrants that all content, images, logos, and materials provided to Web Gecko for inclusion in the Deliverables are either owned by the Client or that the Client holds appropriate licences or permissions to use them. The Client indemnifies Web Gecko against any claims arising from intellectual property infringement related to Client-provided content.

5. Client Responsibilities

The Client agrees to:

- Provide accurate, complete, and timely information required for the delivery of services
- Review and approve drafts and proofs within the agreed timeframes
- Ensure all content provided is lawful, accurate, and does not infringe any third-party rights
- Maintain the confidentiality of any login credentials provided by Web Gecko
- Notify Web Gecko promptly of any errors, issues, or changes required

Delays caused by the Client's failure to provide required information or approvals may result in project delays. Web Gecko is not liable for delays attributable to the Client.

6. Revisions & Change Requests

Website builds include a reasonable number of revisions as agreed at project commencement. Revisions outside the agreed scope may be subject to additional charges, which will be communicated in advance.

Monthly hosting clients receive up to 10 site change requests per month as part of their plan. Unused changes do not carry over to the following month. Additional changes beyond the monthly allocation may be quoted and charged separately.

7. Hosting & Uptime

Web Gecko aims to maintain maximum website uptime but does not guarantee 100% availability. Scheduled maintenance, third-party infrastructure outages, or events beyond our reasonable control may cause temporary interruptions. Web Gecko will endeavour to provide advance notice of planned maintenance where practicable.

Web Gecko is not liable for any loss or damage arising from website downtime, data loss, or interruptions to service caused by third-party infrastructure providers, force majeure events, or circumstances beyond our reasonable control.

8. Limitation of Liability

To the fullest extent permitted by Australian law, Web Gecko's total liability to the Client for any claim arising from or related to our services is limited to the total fees paid by the Client to Web Gecko in the three (3) months immediately preceding the event giving rise to the claim.

Web Gecko is not liable for any indirect, consequential, special, or punitive damages, including loss of revenue, loss of profits, loss of business, loss of data, or reputational harm, even if Web Gecko has been advised of the possibility of such damages.

Nothing in these Terms excludes, restricts, or modifies any consumer guarantee under the Australian Consumer Law that cannot be excluded, restricted, or modified by agreement.

9. Confidentiality

Both parties agree to keep confidential any proprietary or sensitive information disclosed during the engagement. Web Gecko will not disclose Client business information to third parties without the Client's consent, except where required by law or necessary to deliver the agreed services (e.g. engaging subcontractors under confidentiality obligations).

10. Dispute Resolution

In the event of a dispute, both parties agree to first attempt resolution through good-faith negotiation. If the dispute is not resolved within 14 days of written notice, either party may refer the matter to mediation before the Queensland Civil and Administrative Tribunal (QCAT) or, for disputes under \$25,000, the relevant small claims jurisdiction.

11. Termination

Either party may terminate the ongoing services agreement by providing written notice as specified in the Cancellation Policy (WG-CAN-001). Upon termination:

- All outstanding fees become immediately payable
- Web Gecko will cease providing services at the end of the current billing period
- Asset handover (if applicable) will be conducted in accordance with the agreed offboarding process
- Web Gecko reserves the right to take the Client's website offline 30 days after termination of the hosting agreement

12. Amendments

Web Gecko may update these Terms from time to time. Clients will be notified of material changes via email or the client portal. Continued use of our services after notification constitutes acceptance of the updated Terms.

13. Entire Agreement

These Terms, together with any project-specific agreements, the Privacy Policy (WG-PRV-001), and the Cancellation & Refund Policy (WG-CAN-001), constitute the entire agreement between Web Gecko and the Client and supersede all prior representations, discussions, and agreements.

Web Gecko | ABN 32 300 992 377 | hello@webgecko.au | webgecko.au | These Terms are governed by the laws of Queensland, Australia. | Version 1.0 — 14 May 2026